

Court No. - 40

Case :- WRIT - C No. - 7811 of 2023

Petitioner :- Suraj Pratap Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Heard Sri Arun Mishra, learned counsel for the petitioner, Sri Piyush Shukla, learned Standing Counsel for the State and Sri Narendra Kumar Tiwari, learned counsel appearing for respondent no. 2.

Present writ petition has been filed inter alia with the following reliefs:-

"(i). Issue a writ of Certiorari quashing notification No. 173/2206-XXIV.P-3-27P/98T,C. dated 27.06.2006 (Annexure-4) being hit by the doctrine *Nemo Judex in causa sua*.

(ii). Issue a writ of Mandamus commanding respondent no.2 to decide the statutory representation (Annexure-3) of petitioner after affording opportunity of personal hearing strictly in accordance with Clause 8.1 of the U.P. Electricity Supply Code, 2005."

Sri Arun Mishra, learned counsel for the petitioner states that at present petitioner is not pressing his first relief as in light of Clause 8.1 of the U.P. Electricity Supply Code, 2005 (Code, 2005 in short), his representation is still pending consideration.

Learned counsel for the petitioner states that even though he has got the remedy as per Clause 8.1 of the Code, 2005 to make statutory representation. He has already moved a representation on 19.2.2023 before the Executive Engineer, EUDD, Tagore Town, Allahabad in which he has mentioned that he appeared before the authority concerned on 15.2.2023 and requested for providing him inspection report, site diagram and calculation sheet in order to enable him to file fresh comprehensive representation to the provisional assessment notice dated 31.1.2023 but nothing has been done. Learned counsel for the petitioner further submits that in absence of the aforesaid material, petitioner could not move a detailed comprehensive representation in light of Clause 8.1 of the U.P. Electricity Supply Code, 2005.

Considering the facts and circumstances of the case, without advert to the merits of the case and on consent, the writ petition is **disposed of** asking the petitioner to move a fresh comprehensive representation annexing all relevant materials in support of his case and ventilating his grievance before the respondent no. 2, within one week from today. In case, any

such application is being preferred, we hope and trust that the authority concerned would proceed to decide the same strictly in accordance with law, as expeditiously as possible and preferably within three weeks thereafter.

Order Date :- 21.3.2023

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